HIA and MBA clause map

Where common topics (variations, EOT, progress payments, PC, defects) sit in HIA and MBA residential contracts.

Unverified. Clause numbers change between contract editions and between states (MBA publishes state-specific contracts). Before quoting a clause in a notice, confirm it against the contract the client actually signed, and record the edition in the project file (contract_edition). Once a row has been checked against a named edition, add a verified entry.

This map gives clause numbers only. It does not reproduce HIA or MBA contract wording, which is copyright.

Clause map

Topic	HIA	MBA	What it covers
Variations	17	27	Written notice before work, with cost and time impact
Extensions of time	18	25	Written notice of delay: weather, client, authority
Delay costs	18	26	Builder's costs for client or authority delays
Progress payments	15	21	Stage payments and payment timeframe
PC and provisional sums	11	17	Allowances adjusted to actual cost
Site conditions	9	12	Latent conditions can justify a variation
Insurance	14	20	Insurances the builder must hold
Client access	20	32	Owner's access to site, safety rules
Practical completion	21	33	Notice when works are substantially complete
Defects liability	22	35	Period to fix defects after PC, often 13 weeks
Assignment	23	37	No assignment without consent
Termination	25/26	39/40	Grounds and process to end the contract
Disputes	27	42	Dispute process, then tribunal or court
Notices	28	44	How formal notices must be given